

RESOLUTION OF RIGHTS PROCEDURE

In view of the complaint registered on July 18, 2023, with this Agency and the procedural actions carried out as provided in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against UNIVERSIDAD DE LEÓN (hereinafter, the respondent) without receiving the legally established response to their request. The complainant states that on June 16, 2023, they requested access to exams taken by the complainant in the June 2023 call of the EBAU, without having received a response once the deadline for this had passed.

They provide a copy of their request and proof of its electronic submission.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on October 18, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days they could present any allegations they deemed appropriate.

The respondent begins their allegations by stating that access to the EBAU exams has its own regulations for claims, review, viewing, or access.

Namely:

"...We find ourselves with the Principle of Specialty, known as "*lex specialis derogat legi generali*," which does not imply that the special norm derogates the general norm, far from it, but rather that in complex situations such as the one we are addressing, we must consider whether there are regulations that are of primary application, even potentially taking precedence over the LOPDGDD or Regulation (EU) 2016/679, as the provision itself establishes. The University of León, and all National Universities, must comply with specific or special regulations regarding the Evaluation of Baccalaureate for Access to University (EBAU), which would imply that the Principle of Specialty applies, since the development of the EBAU 2023 is regulated by Order PCM/63/2023, of January 25, which determines the characteristics, design, and content of the Baccalaureate evaluation for access to university, as well as the maximum dates for carrying out and resolving the procedures for reviewing the grades obtained in the 2022-2023 academic year. Additionally, at the regional level, it is regulated by Order EDU/163/2020, of February 19, which creates the Organizing Committee for the Baccalaureate Evaluation for Access to the University of Castilla y León and establishes certain aspects of the evaluation that mark the development of the test. Therefore, examining Order PCM/63/2023, in its Article 11, we find clear references to the review of grades (...)

Thus, any student who is not satisfied with their grades may not only file a complaint but also view, that is, access, the content of their exams.

To do this, they must only comply with the established calendar and deadlines. That is, request access to view the exams within three days, as derived from Royal Decree 310/2016. Among the list of students who requested this "viewing," that is, who are accessing the exams, the name of the complainant is not found..."

The respondent continues by stating that they do not deny the requested access but establish certain conditions that are:

"...The ULE responds every time to the complainant, providing the possibility of accessing the exams in person, at a specified time, and where they are given the option to obtain a physical copy, establishing a price set for the certification of the documents. The ULE establishes this method of

access and obtaining copies of the exam to prevent the manipulation of documentation, as well as to avoid access to the documentation by unauthorized third parties, since the alternative offered by the complainant is to send the copies of the exams to an email address of a free operator such as Gmail, which cannot guarantee either its authenticity or its security. For this reason, the University of León, attempting to comply with Articles 24 and 32 of the GDPR, offers a possibility that allows the complainant to access and obtain copies of the exams, trying to avoid any risk where their rights and freedoms may be compromised...”

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they deem appropriate.

The complainant, in summary, states that their right has not been addressed and that the request for copies of the exams sent to an email address in their name does not incur any cost for the respondent entity. They do not understand why they can only be given certified copies upon payment for certification.

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FIFTH: On January 3, 2024, a new written submission of allegations was received from the responding party, in which they present the arguments they consider relevant, as well as a series of attached documentation detailed below. First, they attach the emails received from the claimant in which access to the EBAU exams is requested and the responses issued by the responding party regarding this matter. Next, a copy of the internal considerations they have made in relation to the subject of the present procedure and a copy of the submission of the exams that was ultimately carried out on December 21, 2023, in compliance with Resolution 457/2023, of November 20, from the Transparency Commission of Castilla y León (of which they also provide a copy). They also assert that the requested information was delivered both through the email indicated by the claimant and through the certified Burofax service.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint for processing.

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The exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, was communicated to the party being complained against so that they could analyze it, respond to this Agency within one month, and prove that they had provided the complainant with the appropriate response.

The result of this communication did not satisfy the claims of the complainant. Consequently, on October 18, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which: "When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to comply with such a request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request to be attended to (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a

disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

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In the case analyzed here, the claimant exercised their right of Access and, after the period established in the aforementioned regulations had elapsed, their request did not receive the legally required response, as the requested access was not provided.

The aforementioned regulations do not allow the request to be disregarded as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the party being complained against has provided documentation proving the communication sent to the interested party, sending them their exams in the form of a copy. This response, therefore, occurs once the established deadline has been exceeded.

However, it should be added that the right of access not only includes knowing whether personal data concerning the interested party is being processed, with an indication, where applicable, of the specific personal data processed, but also encompasses the provision of all the information provided for in the first paragraph of Article 15 of the GDPR. This implies that the person exercising their right of access must be provided not only with the requested documentation but also with certain information that is specified in aspects such as, among others, the purposes of the processing of their data, the recipients or categories of recipients to whom the personal data have been or will be communicated, particularly recipients in third countries or international organizations or, if possible, the expected retention period of the personal data or, if not possible, the criteria used to determine this period.

In this regard, it should be clarified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Therefore, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold this complaint as a response has been issued that is both untimely and incomplete, as the full attention to the requested right has not been evidenced or its motivated denial. In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the UNIVERSITY OF LEÓN with NIF Q2432001B, to, within ten working days following the notification of this resolution, send the claimant a certification that fully addresses the requested right or denies it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to the UNIVERSITY OF LEÓN.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

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